

Court No. - 21

Case :- WRIT - C No. - 11237 of 2022

Petitioner :- Diwan Chand Ahuja And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Some Narayan Mishra

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Dinesh Pathak,J.

The instant petition has been filed praying for a mandamus commanding respondent no.3 to issue prepaid electricity connection in favour of petitioner no.1 and to quash the order dated 6.4.2022 passed by the same respondent.

By order dated 6.4.2022, the Chief Engineer, KESCO, Kanpur, respondent no.3 herein has informed the District Magistrate, Kanpur Nagar in connection with a complaint filed by the petitioner that the landlord of the premises in respect of which the petitioner had applied for electric connection is objecting to the same and in view thereof, the electric connection has not been released so far.

Learned counsel for the petitioner has placed reliance on a Division Bench judgement of this Court in **Seema Mansoor Vs. U.P. Power Corporation Ltd. and 3 others, 2014 ADJ, 672** in support of his contention that the petitioner is occupier of the premises, being a tenant holding over and has legal right to obtain electric connection subject to petitioner fulfilling the requirements laid down under Clause 4.4 of the U.P. Electricity Supply Code, 2005.

Learned counsel for the respondent Corporation Sri Mahboob Ahmad is not in a position to dispute the proposition of law laid down in the said judgement. He points out that respondent no.4 is the competent authority to release electric connection and liberty be granted to the said respondent to examine the claim of the petitioner, after hearing the parties.

We are of the opinion that interest of justice would be served in directing respondent no.4 to pass a speaking order taking into consideration the law laid down in **Seema Mansoor (supra)**, after hearing the parties within a period of four weeks from the date of receipt of a true attested copy of the instant order.

The petition stands disposed of accordingly.

(Dinesh Pathak, J.) (Manoj Kumar Gupta, J.)

Order Date :- 25.5.2022

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